

## 26TRCV00287 26TRCV00287

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Motion to Strike Punitive Damages

Moving Party: Defendant Jacqueline Anne Cochrane

Responding Party: Plaintiff Margaret Provine

### RULING

The court considered the moving papers, opposition, and reply. Moving Defendant's Motion to Strike Punitive Damages is GRANTED with leave to amend.

### PROCEDURAL BACKGROUND

On January 27, 2026, Plaintiff Margaret Provine ("Plaintiff") filed a complaint against Defendant Jacqueline Anne Cochrane and DOES 1 through 25, inclusive, alleging a single cause of action for Negligence.

On April 29, 2026, Plaintiff filed a first amended complaint ("FAC") against Defendants Jacqueline Anne Cochrane, Kia America, Inc., and DOES 1 through 50, inclusive, alleging three causes of action for: (1) Motor Vehicle Negligence; (2) Negligence – Products Liability; and (3) Strict Products Liability.

On May 15, 2026, Defendant Jacqueline Anne Cochrane ("Moving Defendant") filed the instant motion to strike. On July 22, 2026, Plaintiff filed an opposition. On July 23, 2026, Moving Defendant filed a reply.

### FACTUAL BACKGROUND

Plaintiff alleges that on January 9, 2026, while Plaintiff was driving on Crenshaw Boulevard and 230th Place in Torrance, California, Moving Defendant negligently operated her motor vehicle, causing Plaintiff to be severely injured. (FAC, ¶ 9.) Plaintiff alleges that she was the driver and owner of a 2017 Kia Sportage which was involved in the collision. (FAC, ¶ 7.)

### LEGAL STANDARD

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., Section 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., Section 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., Section 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., Section 437(a).)

## DISCUSSION

### Moving Party's Argument

Moving Defendant moves to strike Plaintiff's prayer for punitive and exemplary damages and the supporting allegations in paragraph 22 of the FAC. Moving Defendant argues that punitive damages are improper here because Plaintiff has only alleged negligence by Moving Defendant.

### Opposing Party's Argument

Plaintiff argues that Moving Defendant has not provided any authority for her claim that Plaintiff has alleged insufficient facts to support her prayer for punitive damages. Plaintiff argues that she has properly alleged facts supporting her request for punitive damages.

### Reply Argument

Moving Defendant argues that Plaintiff has failed to address the authorities cited in Moving Defendant's motion and argues that Plaintiff's FAC contains conclusory allegations that fail to meet the heightened pleading requirements imposed on a Plaintiff seeking punitive damages.

### Merits of the Motion

### Meet and Confer Requirements

Code of Civil Procedure Section 435.5(a) provides that before filing a motion to strike, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike. (Code Civ. Proc., Section 435.5(a).)

Here, Moving Defendant's counsel declares that on March 3, 2026, counsel called Plaintiff's counsel and left a voicemail requesting that the parties meet and confer. (Lindberg Decl., ¶ 2.) Moving Defendant's counsel declares that Plaintiff's counsel responded by letter and subsequently served the FAC. (Lindberg Decl., ¶¶ 3-4.) Moving Defendant's counsel emailed Plaintiff's counsel on May 5, 2026, requesting that Plaintiff stipulate to remove the punitive damages allegations against Moving Defendant in the FAC, but Plaintiff's counsel did not respond. (Lindberg Decl., ¶ 5.)

Therefore, the court finds that the meet and confer requirements have not been met. However, the court will still discuss the merits of the instant motion to strike.

## Punitive Damages

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code Section 3294. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, Section 3294(a).)

"Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (*College Hospital, Inc.*, supra, 8 Cal.4th at 725.) "A conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences." (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895-896.)

"As amended to include [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found." (*College Hospital, Inc.*, supra, 8 Cal.4th at 725.) The statute's reference to despicable conduct represents a "new substantive limitation on punitive damage awards." (*Ibid.*) Despicable conduct is "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as 'having the character of outrage frequently associated with crime.'" (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287.)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citation.]" (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Moving Defendant argues that Plaintiff's FAC fails to allege facts sufficient to support an award of damages, because the FAC merely alleges negligent conduct on the part of Moving Defendant. The court agrees.

The FAC alleges that Moving Defendant "negligently, recklessly and carelessly operated her motor vehicle, so as to thereby proximately caus[e] the plaintiff to be severely injured." (FAC, ¶ 9.) Plaintiff also alleges that Moving Defendant "knew or reasonably should have known that her physical and mental condition prevented her from safely operating a motor vehicle on public roads," and Plaintiff believes that Moving Defendant "had a history of prior instances of unsafe operation of her motor vehicle on public roads leading up to the accident and notwithstanding same, knowingly chose to maliciously and wantonly cause great risk to the public and community." (FAC, ¶ 21.) These statements are conclusory and do not state facts which would support exemplary damages.

The court further finds that the allegations characterizing Moving Defendant's conduct as "despicable" and "malicious" are also conclusory and devoid of factual support. At most, Plaintiff alleges facts that Moving Defendant acted negligently. Therefore, the court finds that the FAC's prayer for punitive damages and supporting allegations are improper.

Accordingly, Moving Defendant's Motion to Strike Punitive Damages is GRANTED.

## Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 ("When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.")). The burden is on the complainant to show the Court that a pleading can be amended successfully.

(Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

As Plaintiff has alleged that Defendant had a history of prior instances of unsafe operation of a motor vehicle, the court finds that there is a reasonable possibility of successful amendment. Accordingly, the court GRANTS Plaintiff leave to amend.

#### CONCLUSION

Based on the foregoing, Moving Defendant's Motion to Strike Punitive Damages is GRANTED with leave to amend.

Any amended complaint is to be filed and served within 30 days of notice of this ruling.

Moving party is ordered to give notice of ruling.